

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SARANCHUK AND OTHERS v. RUSSIA

(Applications nos. 15326/19 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

9 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Saranchuk and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 October 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Karuyev v. Russia*, no. 4161/13, §§ 15-26, 18 January 2022, concerning interference in the applicant's freedom of expression in a form of administrative conviction for petty hooliganism without specific offence elements; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, related to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning the fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that there has been a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	15326/19 11/03/2019	**Irina Vladimirovna SARANCHUK** 1990	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Rally in support of Mr A. Navalnyy Irkutsk 10/10/2020 Political rally Irkutsk 04/05/2018	article 20.2 § 5 of CAO Article 20.2 § 6 of CAO	fine of RUB 11,000 fine of RUB 10,000	Irkutsk Regional Court 03/03/2021 Irkutsk Regional Court 28/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Irkutsk Regional Court, 03/03/2021 and 28/11/2018	4,000
2.	20684/19 02/04/2019	**Aleksey Aleksandrovich LAVRINENKOV** 1982	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally against the pension reform Smolensk 01/07/2018	article 20.2 § 2 of CAO	fine of RUB 10,000	Smolensk Regional Court 03/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Smolensk Regional Court, 03/10/2018 and 10/10/2018; Art. 10 (1) - conviction for making calls to participate in public events - conviction for an administrative offence for calling on the public to participate in an unauthorised public event (rally against the pension reform	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								on 09/09/2018), art. 20.2 § 8 of the CAO, administrative detention of one day. Final decision: Smolensk Regional Court, 10/10/2018	
3.	28028/19 14/05/2019	**Nataliya Mikhaylovna SAVOSKINA** 1980	Kiselyov Roman Denisovich Moscow	Rally in support of Mr O. Sentsov Moscow 18/06/2018 Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 10,000	Moscow City Court 14/11/2018 Moscow City Court 11/05/2021	Art. 5 (1) - unlawful deprivation of liberty: - escorting to a police station for the purpose of drawing up a record of administrative offence; from 5.00 p.m. to 7.20 p.m. on 18/06/2018, - escorting to a police station for the purpose of drawing up a record of administrative offence and detention in excess of 3 hours and without "exceptional circumstances", from 2.20 p.m. to 7.50 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 14/11/2018 and 11/05/2021	5,000
4.	28491/19 16/05/2019	**Olga Igorevna KUZNETSOVA** 1962	Pomazuyev Aleksandr Yevgenyevich Vilnius	"Hybrid" rally against the pension reform Arkhangelsk 09/09/2018	article 20.2 § 5 of CAO	two fines of RUB 14,000 and 15,000 respectively	Arkhangelsk Regional Court, 20/11/2018 and 29/01/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 2.30 p.m. on 23/01/2021 to 24/01/2021, the hearing in the applicant's administrative offence case, - unrecorded escorting on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Arkhangelsk Regional Court, 20/11/2018, 29/01/2019 12/03/2021 and 03/06/2021	5,000

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				Rally in support of Mr A. Navalnyy Arkhangelsk 23/01/2021	article 20.2 § 2 of CAO, article 20.2 § 5 of CAO	two fines of RUB 25,000 and 15,000 respectively	Arkhangelsk regional Court, 12/03/2021 and 03/06/2021		
5.	30007/19 18/05/2019	**Dmitriy Germanovich GUSEV** 1976	Grachev Anton Sergeyevich Gatchina	Rally in support of the accused in "Novoye Velichiye" and "Set" criminal cases St Petersburg 28/10/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 13/12/2018	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 2.40 p.m. on 28/10/2018 to 29/10/2018, - from 9.13 p.m. on 06/08/2019 to 7.00 p.m. on 08/08/2019. Both times, the applicant was detained until the hearings in his administrative-offence case; 2) unlawful escorting to a police station for the purpose of drawing up a record of administrative offence on 23/01/2021; Art. 10 (1) - various restrictions on the right to freedom of expression - on 03/08/2019 the applicant pronounced a speech during an authorised public rally for fair elections in St Petersburg. On 06/08/2019 he was arrested and escorted to a police station where he was charged with an administrative offence under art. 20.1 § 1 of the CAO (petty hooliganism) for having used a swearword in his speech in respect of Mr Putin. He was further convicted for administrative offence and sentenced to a 10-day administrative detention. Final decision: St Petersburg City Court, 14/08/2019; Art. 10 (1) - conviction for making calls to participate in public events - conviction under art. 20.2 § 2 of the CAO, administrative detention of 8 days for calling on the public to participate in an unauthorised public event	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								scheduled for 23/01/2021 in support to Mr A Navalnyy. Final decision: St Petersburg City Court, 04/03/2021	
6.	37292/19 24/06/2019	**Yegor Mikhaylovich KARASEV** 1998	Zakhvatov Dmitriy Igorevich Moscow	Rally against isolation of Russian internet Moscow 10/03/2019 Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 15,000	Moscow City Court 18/04/2019 Moscow City Court 03/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 12.30 p.m. to 6.00 p.m. on 10/03/2019, - from 11.50 p.m. on 02/02/2021 to 8.30 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 18/04/2019	5,000
7.	39338/19 12/07/2019	**Ilya Vladimirovich KOROBKOV** 1986		Rally against pension reform Yekaterinburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Sverdlovsk Regional Court 16/01/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.20 p.m. on 09/09/2018 to 10/09/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Sverdlovsk Regional Court, 16/01/2019	5,000

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8.	42030/19 19/07/2019	**Boris Vadimovich FEDYUKIN** 1989	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Samara 09/09/2018 March in support of Mr A. Navalnyy Samara 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Samara Regional Court 31/01/2019 Samara Regional Court 20/07/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - escorting to a police station for the purpose of drawing up a record of administrative offence, on 08/11/2018 and on 26/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Samara Regional Court, 31/01/2019 and 20/07/2021	5,000
9.	42221/19 16/07/2019	**Viktor Romanovich KAZANTSEV** 2000	Vasin Vladimir Valeryevich Krasnoyarsk	Rally against Mr Putin's re-election as President Krasnoyarsk 05/05/2018 Rally in support of Mr A. Navalnyy Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 20,000	Krasnoyarsk Regional Court 17/01/2019 Krasnoyarsk Regional Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 4.00 p.m. to 09.00 p.m. on 05/05/2018, while the said record was drawn up only on 15/05/2018, - from 1.20 p.m. to 10.55 p.m. on 31/01/2021, while the said record was drawn up only on 12/02/2021, 2) unlawful escorting to a police station for the purpose of drawing up a record of administrative offence on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Sverdlovsk Regional Court, 11/03/2021, and Krasnoyarsk Regional Court, 20/04/2021;	5,000

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								Art. 10 (1) - conviction for making calls to participate in public events - conviction under art. 20.2 § 2 of the CAO, fine of RUB 20,000 for calling on the public to participate in an unauthorised public event scheduled for 23/01/2021 in support to Mr A. Navalnyy. Final decision: Sverdlovsk Regional Court, 11/03/2021	
10.	42683/19 08/08/2019	**Dmitriy Gennadyevich GUDKOV** 1980	Bochilo Anna Yevgenyevna Barnaul	Rally in support to fair elections to Mosgorduma Moscow 14/07/2019 Rally in support of Mr A. Navalnyy Moscow 23/01/2021	article 20.2 § 8 of CAO article 20.2 § 5 of CAO	administrative detention of 30 days fine of RUB 10,000	Moscow City Court 01/08/2019 Moscow City Court 29/09/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", - from 2.55 p.m. to 5.55 p.m. on 27/07/2019, - from 3.30 p.m. on 28/07/2019 to 5.13 p.m. on 30/07/2019, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 01/08/2019, 04/10/2019 and 29/09/2021; Art. 10 (1) - conviction for making calls to participate in public events - conviction under art. 20.2 § 2 of the CAO, administrative detention of 10 days, for an administrative offence of calling on the public to participate in an unauthorised public event scheduled for 27/07/2019 for fair elections to Mosgorduma. Final decision: Moscow City Court, 04/10/2019	6,000

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11.	10059/21 16/02/2021	**Maksim Ruslanovich KONYUKHOV** 1990	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days (partly exempted for health reasons by the Moscow City Court)	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 05/02/2021	5,000
12.	16344/21 08/03/2021	**Nikita Alekseyevich DOBRYNIN** 1993	Sirosh Fedor Yevgenyevich Moscow	Political rally Moscow 24/03/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 10/09/2020	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; from 5.30 p.m. to 7.20 p.m. on 24/03/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 10/09/2020	5,000
13.	24360/21 17/04/2021	**Yevgeniya Vladimirovna VAZHENINA** 1987	Cherkasov Vitaliy Viktorovich St Petersburg	Rally in support of the governor of the Khabarovsk Region, Mr S. Furgal Khabarovsk 07/11/2020	article 20.2 § 8 of CAO	administrative detention of 9 days	Khabarovsk Regional Court 18/11/2020	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 2.00 p.m. on 07/11/2020 to 10.00 a.m. on 09/11/2020, - from 1.00 p.m. on 15/02/2021 to 16/02/2021, the hearing in the applicant's administrative offence case,	6,000

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				Rally in support of the governor of the Khabarovsk Region, Mr S. Furgal Khabarovsk 26/12/2020	article 20.2 § 8 of CAO	fine of RUB 150,000	Khabarovsk Regional Court 30/03/2021	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
14.	25053/21 20/04/2021	**Aleksandr Vasilyevich VASILYEV** 1979	Bubon Konstantin Vladimirovich Khabarovsk	Rally in support of the governor of the Khabarovsk Region, Mr S. Furgal Khabarovsk 10/10/2020	article 20.2 § 8 of CAO	administrative detention of 20 days	Khabarovsk Regional Court 20/10/2020	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
15.	26915/21 08/05/2021	**Mikhail Yevgenyevich PARFENYUK** 1996	Ivanets Vyacheslav Sergeyevich Tbilisi	Political rally Irkutsk 23/01/2021	article 20.2 § 2 of CAO	administrative detention of 10 days	Irkutsk Regional Court 28/01/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Irkutsk regional Court, 28/01/2021	5,000

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16.	28225/21 30/04/2021	**Yelizaveta Aleksandrovna KLEPIKOVA** 2000	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 13,000	Moscow City Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. to 11.30 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 11/02/2021	5,000
17.	28370/21 04/05/2021	**Lada Sergeyevna SOKOLOVA** 2021		Political rally Moscow 29/05/2020	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/11/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention there from 4.35 p.m. to 7.20 p.m. on 29/05/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 06/11/2020	5,000
18.	28581/21 02/06/2021	**Syldys Aleksandrovich KHOMUSHKU** 1984	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.30 p.m. to 11.50 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 22/03/2021	5,000

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19.	31621/21 07/06/2021	**Yaroslav Ruslanovich MAYKOV** 1990	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.45 a.m. to 9.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 18/03/2021	5,000
20.	31684/21 07/06/2021	**Nikolay Sergeyevich AGAPOV** 1993	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.25 p.m. on 23/01/2021 to 2.40 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 20/04/2021	5,000
21.	32175/21 11/06/2021	**Dmitriy Andreyevich PEREGON** 1999	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 13/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.50 p.m. on 31/01/2021 to 4.15 a.m. on 01/02/2021; the applicant spent more than 4 hours in the police van; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Primorye Regional Court, 13/04/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
22.	32607/21 29/05/2021	**Yelena Sergeyvna BEREZHNAYA** 1992	Sirosh Fedor Yevgenyevich Moscow	Environmental rally Moscow 16/08/2020	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/11/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.25 p.m. to 9.25 p.m. on 16/08/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 30/11/2020	5,000
23.	32652/21 29/05/2021	**Diana Yevgenyevna BORISEVICH** 1997	Sirosh Fedor Yevgenyevich Moscow	Environmental rally Moscow 16/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/12/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; from 6.25 p.m. to 9.05 p.m. on 16/08/2020, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 04/12/2020	5,000
24.	32654/21 29/05/2021	**Aliya Makhmutovna GIZETDINOVA** 1992	Sirosh Fedor Yevgenyevich Moscow	Environmental rally Moscow 16/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/12/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.25 p.m. to 9.25 p.m. on 16/08/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 04/12/2020	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
25.	52100/21 12/10/2021	**Boris Leonidovich KROTOV** 1971	Pershakova Yelena Yuryevna Moscow	Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful deprivation of liberty escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.40 a.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 12/04/2021	5,000

[1] Plus any tax that may be chargeable to the applicants.